

HE Green Paper: response to question 14

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This post is part of an [ongoing series](#) where I intend to develop my full *personal* (not institutional) response to the HE Green Paper. Comments are welcome to refine this.

The Green Paper asks in Question 14:

Do you agree with the proposed single route into the higher education sector? Please give reasons for your answer, including information quantifying how the potential cost of entry would change as a result of these proposals.

I do not agree with the proposed single route and here present the evidence that it will not deliver the government's stated goals.

Paragraph 1 on page 42 of the Green Paper states that: "Widening the range of high quality higher education providers stimulates competition and innovation, increases choice for students, and can help to deliver better value for money". This is an unevidenced statement and many elements of it are unsupported by experience to date. Firstly, it is unclear as to why widening the range of HE providers would lead to higher quality provision nor why the government's policies will lead to a range of HE providers. In a finite market system with funding allocated by student-as-consumer, widening the number of providers will dilute the available resources, leading to the underfunding of several institutions. This can only result in a fall in quality at those institutions (as noted in, say, the Green Paper's suggestions for metrics about staff ratios). Coupled with the lifting of the numbers cap, however, this is likely to lead to a contradictory motion towards a concentration of resources at a smaller number of institutions. Secondly, it is not clear how this widening of providers "can help to deliver better value for money". A member of BIS has been [previously](#)

reported as saying, of the expansion of alternative providers in 2013, that “We’re only realising now the size the blank cheque we’ve written”. Furthermore, in that same year BIS had to write to 23 designated private provider asking for restraint in recruitment for 2014 since the budget for AP access to the loan book ran £80m over budget. Finally, there are no benchmarked RAB charge figures for students from alternative providers. The assertion that this system will necessarily be cheaper has simply not been borne out by experience in this space so far and it looks as though the current government is set to repeat the mistakes of the previous administration. There have also been instances of fraud at these providers that have only just been caught by the current regulatory system, let alone by a relaxed system. The Green paper states that “Our aspiration is to remove all unnecessary barriers to entry into higher education”, yet instances like this demonstrate that the barriers may be too low already. Lowering the barriers may cause substantial reputational damage to UK higher education and, by extension, UK PLC.

On this last matter of reputation, the Green Paper notes that “Higher education in England rightly has an excellent global reputation, and we must ensure that reputation is maintained”. This reputation relies on it being *difficult* to gain the status of “university” or “HE provider/institution”. The Green Paper also commits to preserving the “protections [introduced by the last government], and the additional measures put in place in recently published guidance” but only “where they are needed”. The next paragraph, however, flies in the face of this guarantee by contradictorily claiming that “We recognise that some of those controls have the potential to hold back entry and growth among high quality providers” and that the government has “already made a start in removing some of these barriers”. This seems to mean that the guarantee to preserve protections is untrue. Either these protections are to be maintained in the interest of preserving the quality and reputation of English HE or it is not. This is an extremely deceptive rhetorical move.

Specifically, the proposed removal of these barriers carries grave risks:

- “Require 3 years of audited accounts before they can secure specific course designation” and “normally need a 4 year track record before they can apply for DAPs, for which the process takes a minimum of 18 months”. Removing these barriers is likely to see a rise in fraudulent and malignant actors in the HE space. It is also likely that this will stimulate rapid market entrance and then exit, since unstable providers will enter the space, which is not good for students who

rely on the ongoing reputation and existence of their institutions for jobs. Removing this requirement will be opening up public funding, through loans and the RAB charge, to institutions without a financial track record.

- “Are subject to an annual process of re-designation, meaning that they cannot plan ahead”. Yet this is the very certainty that TEF and its bandings seeks to eliminate from all institutions.
- “Generally need to rely on incumbent providers to validate their provision in order to build up that track record”. This is the only way that *higher* education can work. The teaching of new knowledge, gained at the forefront of research, must be peer validated by the foremost experts in the field if it is to be high quality. Existing institutions require every subject area to validate in this way as part of external marking arrangements, with annual meetings to ensure comparability between institutions. If this element of QA is to be removed then there would be a rapid deterioration in the quality of English HE.

It is unclear, therefore, how these aspects will meet the government’s aims:

- “Quicker access to student funding, and no cap on student numbers”. This is likely to allow unproven actors to have access to public funding. It will only take one or two scandals for this system to be discredited. As noted above, they are already happening.
- “Ability to apply earlier for degree awarding powers (DAPs), with a more flexible approach to track record”, “shorter time period for DAPs assessment” and “ability to secure university title (UT) much earlier”. If the aim is to allow *high-quality* entrants, then it is contradictory to remove the markers that designate high quality and to replace them with easier goals. Passing rigorous requirements must be a part of any assessment of “high quality”. If a provider is high quality but cannot pass the existing validation process, then we must ask what “high quality” actually means. Again, to reiterate, the reputation of English HE rests upon this difficulty. Allowing easier access can only lead to a lowering of standards, *by definition*.
- APs “will also need to demonstrate that their provision adds a minimum level of value to English higher education” if charging up to £9,000 fees. How is this requirement to merely demonstrate a “minimum level of value” commensurate with the desire to stimulate high-

quality provision? This is a race to the bottom, in terms of quality.

Given that the claimed goal with these changes is to “level the playing field”, it is also not right that on page 46 Pearson should have a specific privileged position in approving model 2b providers. This appears to give an unfair advantage to this entity. Furthermore, I believe that Pearson has shown itself to be an ineffectual regulator in the past. At Regent College, on its validated HND, “of the 145 full-time students from the January 2013 enrolment, only two students passed the four compulsory modules that comprised their HND study programme for the first semester”. Yet Pearson was, to quote the linked article, “satisfied that no further action was needed”.

Far from representing “a very significant step in creating truly competitive provision for higher education in England” these measures are likely to lead to substantial international reputational damage and suspicion about the quality of English HE.